
MUTUAL NON-DISCLOSURE AGREEMENT

Confidential — For Authorized Parties Only

DISCLOSING PARTY	RECEIVING PARTY
Nexacore Technologies, Inc.	Priya Venkataraman
A Delaware Corporation	Independent Contractor
500 Innovation Way, Suite 400	78 Birchwood Lane
San Francisco, CA 94105	Austin, TX 78701
Represented by: CEO James O'Brien	Email: p.venkataraman@consult.io

Effective Date: **October 1, 2026** | Agreement Number: **NDA-2026-0471**

RECITALS

WHEREAS, the parties wish to explore a potential business relationship involving the development of proprietary software modules for Nexacore's FinTech analytics platform (the "Purpose"); and WHEREAS, in connection with the Purpose, each party may disclose to the other certain confidential and proprietary information; NOW, THEREFORE, in consideration of the mutual covenants contained herein and for other good and valuable consideration, the parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

1.1 "Confidential Information" means any and all information or data that has or could have commercial value or other utility in the business in which the Disclosing Party is engaged, including but not limited to: source code, algorithms, trade secrets, financial projections, business plans, customer lists, pricing strategies, product roadmaps, research data, technical specifications, and any information marked as "Confidential," "Proprietary," or "Trade Secret."

1.2 Confidential Information does not include information that: (a) is or becomes publicly available through no breach of this Agreement; (b) was rightfully known by the Receiving Party prior to disclosure; (c) is independently developed by the Receiving Party without use of the Confidential Information; or (d) is disclosed pursuant to a lawful court order, provided the Receiving Party gives prompt written notice to the Disclosing Party.

2. OBLIGATIONS OF RECEIVING PARTY

2.1 Non-Disclosure. The Receiving Party agrees to hold all Confidential Information in strict confidence and not to disclose it to any third party without the prior written consent of the Disclosing

Party.

2.2 Limited Use. The Receiving Party shall use Confidential Information solely for the Purpose defined in the Recitals and for no other purpose whatsoever.

2.3 Standard of Care. The Receiving Party shall protect the Confidential Information using at least the same degree of care it uses to protect its own confidential information, but in no event less than **reasonable care**.

2.4 Need-to-Know. The Receiving Party may disclose Confidential Information only to its employees, contractors, or agents who: (a) have a need to know for the Purpose, and (b) are bound by confidentiality obligations at least as protective as those in this Agreement.

3. TERM AND TERMINATION

3.1 Term. This Agreement shall remain in effect for a period of **three (3) years** from the Effective Date unless earlier terminated by either party upon thirty (30) days' written notice.

3.2 Survival. The confidentiality obligations under Section 2 shall survive termination of this Agreement for a period of **five (5) years** following the date of disclosure of the relevant Confidential Information.

3.3 Return of Materials. Upon termination or written request by the Disclosing Party, the Receiving Party shall promptly return or certifiably destroy all Confidential Information and any copies thereof within **10 business days**.

4. INTELLECTUAL PROPERTY

Nothing in this Agreement grants the Receiving Party any license, right, title, or interest in any Confidential Information or in any intellectual property of the Disclosing Party. All Confidential Information remains the exclusive property of the Disclosing Party.

5. REMEDIES

The parties acknowledge that any breach of this Agreement may cause irreparable harm to the Disclosing Party for which monetary damages would be an inadequate remedy. Accordingly, the Disclosing Party shall be entitled to seek **injunctive relief**, specific performance, and any other equitable remedy available without the requirement to post a bond or prove actual damages, in addition to any other remedies available at law.

6. PENALTIES FOR BREACH

In addition to equitable remedies, a party found to have materially breached this Agreement shall be liable for: (a) all actual damages suffered by the non-breaching party; (b) reasonable attorneys' fees and legal costs; and (c) a **liquidated damages amount of \$50,000 USD** per instance of unauthorized disclosure, which the parties agree represents a reasonable estimate of minimum harm and is not a penalty.

7. GENERAL PROVISIONS

7.1 Governing Law. This Agreement shall be governed by the laws of the **State of Delaware**, without regard to its conflict of law principles.

7.2 Entire Agreement. This Agreement constitutes the entire agreement between the parties regarding the subject matter hereof and supersedes all prior agreements.

7.3 Amendment. No amendment to this Agreement shall be valid unless made in writing and signed by both parties.

7.4 Severability. If any provision is found unenforceable, the remaining provisions shall continue in full force and effect.

7.5 No Waiver. Failure to enforce any provision of this Agreement shall not constitute a waiver of the right to enforce such provision in the future.

7.6 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

SIGNATURES

NEXACORE TECHNOLOGIES, INC.

RECEIVING PARTY

James O'Brien, CEO

Date: _____

Priya Venkataraman

Date: _____

This document is a demonstration NDA created for LexAI testing purposes. It does not constitute legal advice.